

The Goa Public Men's Corruption (Investigations and Inquiries) Complaint Rules, 1993

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The Goa Public Men's Corruption (Investigations and Inquiries) Complaint Rules, 1993

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The Goa Public Men's Corruption (Investigations and Inquiries) Complaint Rules, 1993

Rule THE-GOA-PUBLIC-MEN-S-CORRUPTION-INVESTIGATIONS-AND-INQUIRIES-COMPLAINT-RULES-1993 of 1993

Published on 14 June 1993

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The Goa Public Men's Corruption (Investigations and Inquiries) Complaint Rules, 1993

Published vide Notification No. 1/26/80-VIG-VOL-1, dated 14th June, 1993

1.

/26/80-VIG-VOL-I. - In exercise of the powers conferred by sub-section (1) read with clauses (a) and (d) of sub-section (2) of section 32 of the Goa Public Men's Corruption (Investigations and Inquiries) Act, 1988 (Act 7 of 1991), the Government of Goa hereby makes the following rules to specify the form in which complaints may be made under section 11 and the manner of deposit of the sum referred to in the said section, namely:-

1. Short title and commencement.

(1)

These rules may be called the Goa Public Men's Corruption (Investigations and Inquiries) Complaint Rules, 1993.

(2)

They shall come into force at once.

2. Definitions.

(1)

In these rules unless the context otherwise requires,-

(a)

"Act" means the Goa Public Men's Corruption (Investigations and Inquiries) Act, 1988 (Act 7 of 1991);

(b)

"Complaint" means a complaint presented to the Commission under section 11 of the Act;

(c)

"Schedule" means the Schedule appended to these rules.

(2)

Words and expressions used but not defined in these rules and defined in the Act, shall have the meanings respectively assigned to them in the Act.

3.

Form of complaint.

- Every complaint shall as far as practicable be in accordance with the form set out in the Schedule.

4.

Copies of complaint.

- Every complaint and the documents accompanying it shall be in quadruplicate accompanied by as many spare copies as there are public men against whom allegations of corruption have been made in the complaint.

5.

Affidavit to accompany complaint.

- Every complaint shall be supported by an affidavit as provided in sub-section (2) of section 11 of the Act.

6.

Contents of affidavit.

- Every affidavit filed before the Commission shall be drawn up and authenticated in the manner specified under the Civil Procedure Code, 1908 (Central Act 5 of 1908).

7.

Copies of documents to be relied upon.

- If the complainant wants to rely upon any document, he shall alongwith the complaint submit under his signature, a true copy of such document.

8.

Mode of presentation.

- Every complaint shall be presented to the Commission in person or be sent by registered post.

9.

Sum to be deposited by complainant.

- The deposit in the treasury of the sum mentioned in sub-section (2) of section 11 of the Act, by the complainant shall be under the Head "8443 Civil Deposits -116 Deposits under various Central and State Acts 01- Deposits under sub-section (2) of the Section 11 of the Goa Public Men's Corruption (Investigations and Inquiries) Act, 1988 (Act 7 of 1991).

10.

Defective complaint not be entertained.

- A complaint which does not comply with any of the requirements of the Act or these rules shall not be entertained:

Provided that the complainant may be given an opportunity to cure the defects within such period and in such manner as may be specified by the Commission.

Schedule

(See Rule 3)

Cause Title:-

Before the Commission constituted under section 4 of the Goa Public Men's Corruption (Investigations and Inquiries), Act, 1988 (Act 7 of 1991).

Complaint No. of 19

Between

A. B. (Add name and address)

Complainant

And

C. D. [Add name, official designation (if any) and address]

Respondent

1. Name of the Complainant.

2. Father's or Husband's name.

3. (a) Age

(b)

Occupation

(c)

Status

4. Permanent Address

(a)

Name

(b)

House Number

(c)

Street/Road

(d)

Village/Ward

(e)

Post Office

(f)

Taluka

(g)

District

5. Chalan No., name of treasury and date of deposit of the sum referred to in section 11(2) of the Act. (No. deposit is required if the petition is presented jointly by not less than ten members of the Legislative Assembly).

6. Nature, description and particulars, including the approximate date or period of the corrupt act alleged to have been committed.

7. Name and address of other persons (if any) who have knowledge about the facts relating to the complaint whom the complainant would like to be summoned by the Commission.

8. Documents attached to the complaint.

Signature of the Complainant

Place:

Date:

I/ We declare that what is stated in paragraph () is true to my/our knowledge and that what is stated in paragraph () is stated on information which is believe to be true.

Signature

Date:

(Note: The form can be copied out on plain paper by the Complainant. Additional pages can be added, according to the requirements of the nature and description of the alleged corruption).

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